Consent Is Not a Constitution: The DPDP Act and the Missing Proportionality Test

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From Puttaswamy to the DPDP Act

India's Digital Personal Data Protection Act, 2023 was meant to give statutory form to a constitutional promise. In *Justice K.S. Puttaswamy v Union of India* (2017), a nine-judge bench of the Supreme Court held privacy to be a fundamental right under Article 21. It did not stop at declaring the right. The plurality laid down how any state intrusion must be tested: there must be a law, the law must pursue a legitimate aim, and the intrusion must be proportionate to that aim. Justice Kaul added that there must be procedural safeguards against abuse. The Court also urged the government to enact a data protection regime that would honour these standards.

What followed took six years. The Srikrishna Committee's 2018 draft bill borrowed heavily from the GDPR. The 2019 bill widened state exemptions, and it was withdrawn in 2022 after a joint parliamentary committee review. The 2023 Act is a far leaner text. It was operationalised by the DPDP Rules in November 2025, and its substantive duties take effect in May 2027. The question worth asking is whether it does what *Puttaswamy* required. On the central test, proportionality, it does not.

Two architectures

The DPDP Act is built around consent. A data fiduciary may process personal data with the data principal's consent, or for one of a closed list of "certain legitimate uses" in section 7. For private actors, that list is narrow, so consent does most of the work. For the state, the list is generous. Section 7(b) covers subsidies, benefits and services, using data already held in any government database the central government notifies. Section 7(c) covers functions "under any law", and also anything in the interest of the sovereignty, integrity or security of the State, which needs no law at all. Section 17(2) lets the government exempt any of its instrumentalities from the Act by notification. None of these provisions asks for a necessity or proportionality test.

The GDPR starts somewhere else. It treats data protection as a fundamental right under the EU Charter. Consent is only one of six lawful bases, and it is not even the preferred one. The structural difference lies in where proportionality sits. A public authority performing its tasks must point to a law that is clear, foreseeable and proportionate to its aim (Article 6(3)). It cannot rely on legitimate interests. A private controller that relies on legitimate interests must first show necessity and then balance its interest against the data subject's rights. High-risk processing requires an impact assessment that weighs necessity and proportionality (Article 35). In both cases, proportionality is a condition of lawful processing, assessed before the data is touched.

Proportionality left to litigation

The word "proportionality" does not appear in the DPDP Act. There is no requirement that a state processing scheme be shown to be necessary. There is no comparison with less intrusive alternatives,

and no impact assessment for government processing. Only significant data fiduciaries must carry out periodic assessments, and the state can exempt itself from even those. Nor is there any institution to ask the question in advance. The Data Protection Board is appointed by the central government, and it has no advisory role on legislation or executive notifications. It adjudicates breaches of the Act's specific duties after they occur.

The Act therefore relies on ex-post accountability. A fiduciary is to give notice, take consent, keep data secure and report breaches, and the Board penalises it if it fails. The *Puttaswamy* test is not repealed by this design; it is simply left out. Whether a particular state database, linkage or exemption is proportionate is a question that arises only if someone files a writ petition. The court then decides it years later, on a record the state itself controls. A constitutional obligation on the state to justify its intrusion beforehand becomes a burden on citizens to challenge it afterwards.

Compliance is not harm accountability

Two kinds of accountability must be distinguished. Compliance accountability asks whether a fiduciary violated a statutory duty; a regulator can establish a failure of notice or security without proving injury to any individual. Harm accountability asks whether particular processing caused an adverse consequence. With personal data, that causal chain is often invisible. Someone denied a loan, flagged for a welfare investigation, or targeted by a scam may never discover which linkage, inference or disclosure contributed to the decision. Harms may surface months later, elsewhere.

The Act provides compliance penalties, but no compensation under its own framework; penalties go to the state. Processors are regulated principally through fiduciaries, while the relevant data flows may remain opaque to outsiders. Crucially, even perfect enforcement of notice, consent and security duties cannot establish that an otherwise compliant scheme is necessary or proportionate. The Dutch SyRI and childcare-benefits scandals illustrate how problematic profiling systems may require scrutiny by courts, journalists and civil society. Compliance enforcement is indispensable, but cannot substitute for scrutiny of the processing itself.

Consent is not authorisation

Three questions must be separated. Legitimacy asks whether processing for a stated purpose is justified by law, necessity and proportionality. Authorisation asks whether a particular actor may access particular data for a particular operation, under an enforceable and auditable policy. Consent asks whether an individual has validly agreed, where agreement is an appropriate legal basis. Consent may be an input to authorisation; it cannot establish legitimacy. Nor does authorisation alone establish legitimacy. A consent artefact specifying "loan underwriting" does not demonstrate that every requested datum is necessary, or control all subsequent inferences and linkages. A system can be consent-compliant yet disproportionate, or legitimate in purpose yet insecure in its access controls.

Over-reliance on consent also ignores the conditions in which it is obtained. Individuals rarely know what linked data can reveal or have power to negotiate terms. When consent is effectively the price of a loan or treatment, formal agreement may conceal coercion. The GDPR explicitly scrutinises imbalance of power and conditioning a service on unnecessary processing. The DPDP Act requires free and specific consent, but does not provide an equally developed framework for assessing such structural imbalances.

For public services, the point is sharper still. A welfare scheme, a health record or an identity system should rest on a specific law that states its purpose, its data and its limits. It must not violate people's rights even if they consent. Consent cannot make a disproportionate scheme proportionate. Hiding behind consent is not a principled option.

The case for documented ex-ante proportionality

The alternative is to do what *Puttaswamy* asked, and to do it before deployment. Every state processing scheme, and every private use that does not rest on consent, should be supported by a proportionality analysis that is written down and published before it goes live. That analysis would state the purpose and the law that authorises it. It would show that the system can actually achieve the purpose, set out the less intrusive alternatives that were considered, and specify what data is collected, who can access it, which systems it is linked to, and for how long it is kept. It should be reviewed by a body that is independent of the department proposing the scheme.

Publication matters as much as the analysis itself. A published assessment can be contested before harm occurs, rather than reconstructed in court afterwards. It gives the Board and the courts a record against which to test later conduct. Above all, it moves the burden of justification back to where the Constitution places it: on the state, and in advance.

Regulation is not the opposite of innovation

It is tempting to dismiss ex-ante proportionality analysis as regulation standing in the way of innovation. "Innovation versus regulation" is a false dichotomy. A design that cannot contain the harms it creates is not particularly innovative; it simply shifts its costs onto the people whose data it processes. Proportionality analysis asks designers to state what a system is for, to show that it works, and to find the least intrusive way of achieving it. These are design questions, and answering them well is what good engineering looks like. Proportionality analysis and innovation can, and should, go hand in hand.

Proportionality needs a grammar

Proportionality is necessary, but it is not self-executing. In the Aadhaar judgment (2018), the majority and Justice Chandrachud's dissent applied the same test to the same scheme and reached opposite conclusions. The majority weighed benefits of deduplication and minimal data collection, and found the scheme proportionate. The dissent weighed exclusion from biometric failure and the architecture of surveillance, and found it unconstitutional. The GDPR's enforcement record—more than two thousand fines, running to several billion euros—also demonstrates that statutory obligations and controllers' own compliance assessments do not guarantee lawful processing.

The lesson is that benefits and risks must be stated in a precise, common language. Claimed benefits need measurable outcomes and evidence that the system actually works. Risks need explicit threat models, the effects of linking datasets, error rates, and an account of who bears them. Without such a grammar, proportionality analysis becomes rhetoric, and whoever controls the narrative controls the outcome. The framework is right. Operationalising it requires a precise way of articulating risk. Developing such a grammar—and a way of testing the evidence on which proportionality claims rest—is the subject of a future article.